



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

May 05, 2025

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 14710
(FIFTH REVISION)

EXPIRATION DATE: 2029-04-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Brenner Tank, LLC
Fond Du Lac, WI
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, mark, sale and use of DOT 400 series cargo tank motor vehicles constructed of titanium instead of the materials authorized in § 178.345-2. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 178.345-2 in that the use of a material not listed in Section II (Parts A and B) of the ASME Code is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Brenner Tank, LLC dated March 26, 2025, and submitted in accordance with § 107.109.

Tracking Number: 2025035148

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Materials authorized for DOT Specification 400 series cargo tank motor vehicles	Various	Various	I, II, III

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: Packaging prescribed is a DOT Specification cargo tank motor vehicle conforming in all respects to either DOT Specification 407 or 412, except that they are constructed of titanium (UNS R50400 and UNS R50550). Tanks must be constructed in compliance with the ASME Code, including Code Case 2497-2. Allowable design stresses and minimum thicknesses shall be as indicated in the special permit application on file with the Office of Hazardous Materials Safety and shall be such that the design margin for all cargo tanks will be 4:1.
- b. TESTING: All cargo tanks fabricated under the terms of this special permit must be reinspected and retested in accordance with the requirements for the applicable DOT 400 series cargo tank in 49 CFR Part 180, Subpart E.

8. SPECIAL PROVISIONS:

- a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.
- b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.
- c. Each cargo tank motor vehicle must be plainly and durably marked on both sides near the middle in letters at least two inches in height on a contrasting background “DOT-SP 14710” as specified in § 172.302 (b) and (c).

d. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports.

In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read 'William Schoonover', is written over a light blue horizontal line.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: KH